

SENATE BILL 2709

By Crowe

AN ACT to amend Chapter 135 of the Acts of 1903; as amended by Chapter 35 of the Private Acts of 1993; Chapter 9 of the Private Acts of 1999; Chapter 52 of the Private Acts of 2003; Chapter 33 of the Private Acts of 2012; and any other acts amendatory thereto, relative to the town of Jonesborough.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 135 of the Acts of 1903, as amended by Chapter 52 of the Private Acts of 2003, Chapter 33 of the Private Acts of 2012, and any other acts amendatory thereto, is amended by deleting Section 3(a) and substituting:

Sec. 3(a). The Board shall elect an Alderman to the office of Vice Mayor who shall serve as Mayor when the Mayor is absent or unable to discharge the duties of the Mayor's office, and in the case of a vacancy in the office of Mayor, until the earlier of the Board of Mayor and Aldermen electing a Mayor from among the currently serving Aldermen or the certification of the results of the next regular municipal election.

SECTION 2. Chapter 135 of the Acts of 1903, as amended by Chapter 35 of the Private Acts of 1993, Chapter 52 of the Private Acts of 2003, Chapter 33 of the Private Acts of 2012, and any other acts amendatory thereto, is amended by deleting the first paragraph of Section 7 and substituting:

That the Board of Mayor and Aldermen shall appoint a recorder who shall be the Director of the department of finance; and the recorder shall be under the supervision and subject to the at-will removal of the town administrator. The recorder shall receive a salary to be fixed by the Board of Mayor and Aldermen and shall either be bonded in such amount as may be provided by ordinance or be covered by insurance on terms and in such amount provided by ordinance. The recorder shall by signature and the town

seal, attest all instruments signed in the name of the town. The recorders shall have the power to administer oaths.

SECTION 3. Chapter 135 of the Acts of 1903, as amended by Chapter 9 of the Private Acts of 1999, and any other acts amendatory thereto, is amended by deleting Section 14 and substituting:

Section 14. Be it further enacted, that the term of the present Mayor will expire in 2026 and an election will be held in November 2026 for a two-year term for Mayor which will expire after the results are certified in a municipal election which will be held with the County general election in August of 2028. The present Mayor shall serve until the Mayor's successor is elected and qualified. At the August 2028 election and every two (2) years thereafter, there shall be elected by the qualified voters a Mayor who shall serve a term of two (2) years, beginning the Monday following the certification of the results of the election and until a successor is elected and certified in elections held at the same time as the Washington County general election in August of such years.

That the term of two (2) present Aldermen will expire in 2026 and an election will be held in November 2026 for a four-year term which will expire after the results are certified in a municipal election which will be held at the same time as the Washington County general election in August 2030 for a four-year term. At the August 2030 election and every four (4) years thereafter, there shall be elected by the qualified voters two (2) Aldermen who shall serve a term of four (4) years, beginning the Monday following the certification of the results of the election and until a successor is elected and certified in elections held at the same time as the Washington County general election in August of such years.

Two (2) other present Aldermen currently serve terms that will expire in 2028, and an election will be held in November 2028 for a four-year term which will expire after the results are certified in a municipal election which will be held at the same time as the Washington County general election in August 2032 for a four-year term. At the August

2032 election and every four (4) years thereafter, there shall be elected by the qualified voters two Aldermen who shall serve a term of four (4) years, beginning the Monday following the certification of the results of the election and until a successor is elected and certified in elections held at the same time as the Washington County general election in August of such years.

No person shall be a candidate for the office of Mayor and the office of Alderman in the same election, nor shall any person hold both offices at the same time. If a sitting Alderman wishes to run for the office of Mayor in the off-year cycle of their current term, they must first resign from the office of Alderman before filing a petition to run for Mayor.

The election commissioners of Washington County, or such officers as are charged with holding county elections, shall appoint the officers, judges, and clerks to hold said election under the general rules and regulations prescribed for the civil district in which the town is situated in elections for members of the Legislature or the legislative body of the county, and all persons qualified to vote under the provisions of this Act shall be entitled to vote at said election.

The officers holding the elections shall certify the results to the County Election Commissioners or other officers charged by law with such duties, who shall canvass the returns on the next Monday or as soon thereafter as is practical following the election, and declare and certify the results.

SECTION 4. If any provision of this act or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the act which can be given effect without the invalid provision or application, and to that end, the provisions of this act are declared to be severable.

SECTION 5. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the Town of Jonesborough. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 6. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 5.